SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUBC008920: MOSES CHECA vs FORD MOTOR COMPANY, et al.
08/19/2026 in Department 44
Motion to Tax Costs Motion to Strike and/or tax Defendant's Costs

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at https://www2.ventura.courts.ca.gov/Courtroom/C44.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff's Motion to Strike and/or Tax Defendant's Costs (*Opposed*)

Tentative Ruling:

Plaintiff Moses Checa's Motion to Strike and/or Tax Defendant Price Ford of Simi Valley's Costs is GRANTED IN PART.

The Court taxes Price Ford's expert-witness fees in the amount of $9,853.40.

The Court DENIES the request to tax the challenged $584.25 in court-reporter fees, the $56.86 in electronic-filing charges, add deposition costs of $415.00. Plaintiff withdraws the request to tax $97.50 in courtesy-copy delivery charges.

Accordingly, a total of $9,853.40 is taxed from Price Ford of Simi Valley's Memorandum of Costs. Price Ford's recoverable costs are reduced from $12,894.96 to $3,041.56.

Plaintiff is to give notice of the Court's ruling.

I. Background

A. Factual Background

Plaintiff Moses Checa purchased a new 2020 Ford Ranger in August 2020. In May 2023, Plaintiff commenced this action against Ford Motor Company and Price Ford of Simi Valley, asserting Song-Beverly claims against Ford as well as a negligent-repair claim against Price Ford arising from the servicing of the vehicle.

On August 30, 2024, Price Ford served Plaintiff with an offer to compromise under Code Civ. Proc. § 998. Price Ford offered to waive its costs in exchange for dismissal with prejudice and a release of the claims against it. Plaintiff did not accept the offer. The offer further stated that, if Plaintiff failed to obtain a more favorable judgment, Price Ford could seek post-offer costs and the Court could award reasonable expert-witness fees actually incurred and reasonably necessary in preparation for or during trial.

B. Procedural Background

The matter proceeded to jury trial in April 2026. On April 6, 2026, at the outset of trial, the Court granted Price Ford's Motion for Judgment on the Pleadings on Plaintiff's negligent-repair cause of action, the only cause of action in which Price Ford was named.

A jury trial took place between Plaintiff and Ford. During trial, Plaintiff voluntarily dismissed three causes of action asserted against Ford, leaving two Song-Beverly claims for determination by the jury: breach of express warranty under Civ. Code § 1793.2(d) and failure to timely begin repairs under Civ. Code § 1793.2(b).

On April 13, 2026, the jury returned a mixed verdict as between Plaintiff and Ford. On the Civ. Code § 1793.2(d) claim, the jury found that the Ranger had a warranty-covered defect that substantially impaired its use, value, or safety; that Ford or its authorized repair facility failed to repair the vehicle after a reasonable number of opportunities; and that Ford failed promptly to replace or repurchase the vehicle. The jury awarded Plaintiff $27,650.11 in damages, but found that Ford's failure to repurchase or replace the vehicle was not willful and therefore awarded no civil penalty.

Ford prevailed on Plaintiff's separate Civ. Code § 1793.2(b) claim. Although the jury found that the vehicle had a defect requiring warranty service or repair, it found that Ford or its authorized repair facility did not fail to begin repairs within a reasonable time. Thus, Plaintiff obtained a monetary recovery against Ford, while Price Ford prevailed completely on the claim asserted against it. Ford also prevailed on the Civ. Code § 1793.2(b) claim and on the issue of willfulness under the Civ. Code § 1793.2(d) claim.

Thereafter, Price Ford filed a Memorandum of Costs seeking $12,894.96 as the prevailing defendant on Plaintiff's negligent-repair claim. Plaintiff filed the present Motion to Strike and/or Tax those costs on June 3, 2026. Price Ford opposed the motion, and Plaintiff filed a reply narrowing the amount he seeks to tax to $10,909.51.

II. Preliminary Matters

A. Timeliness

California Rules of Court, rule 3.1700(b)(1) requires a motion to strike or tax costs to be served and filed within 15 days after service of the cost memorandum, subject to the applicable extensions for mail or electronic service.

Price Ford filed its cost memorandum on May 19, 2026, and Plaintiff filed this motion on June 3, 2026, 15 days later. The materials provided do not establish the precise date or manner in which Price Ford served its cost memorandum, but Price Ford does not contend Plaintiff's motion was untimely. The motion should therefore be treated as timely.

The supplied record likewise does not contain a signed judgment or notice of entry of judgment as to Price Ford from which the Court could independently calculate Price Ford's own deadline under rule 3.1700(a)(1). Plaintiff, however, does not challenge the timeliness of Price Ford's memorandum of costs, and that question therefore need not be resolved.

B. Price Ford Is the Prevailing Party

Under Code Civ. Proc. § 1032(a)(4), a prevailing party includes "a defendant as against those plaintiffs who do not recover any relief against that defendant." Price Ford obtained judgment on the only claim asserted against it, and Plaintiff does not dispute Price Ford's status as a prevailing party entitled to recover otherwise allowable costs. Price Ford therefore qualifies as the prevailing party for purposes of Code Civ. Proc. §§ 1032 and 1033.5.

C. Scope of Plaintiff's Motion

Price Ford argues that the deposition-cost challenge is not properly before the Court because Plaintiff omitted deposition costs from the introductory notice of motion. The argument is not persuasive. While the grounds for a motion must be stated in the notice of motion, the Court may overlook the defect so long as the supporting papers clearly set forth the grounds for the relief sought. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1125.) Here, while Plaintiff concedes the omission in the notice, the memorandum served with the notice contained a separately captioned section challenging "Deposition Costs - $1,159.20," identified the amounts challenged, and stated the grounds for the objection. Price Ford had actual notice of the issue, substantively opposed it, and produced the underlying deposition invoices. The Court therefore reaches the merits rather than disregards the challenge based on the omission from the notice's introductory summary.

Plaintiff's reply withdraws his request to tax $97.50 in courtesy-copy delivery charges. The $10,909.51 reduction requested in the reply consists of $9,853.40 in expert fees, $415.00 in deposition charges, $584.25 in court-reporter fees, and $56.86 in electronic-filing charges.

III. Discussion

A. Legal Standard

Code Civ. Proc. § 1032 is the basic statutory authority for recovery of costs by a prevailing party. Code Civ. Proc. § 1033.5(a) identifies costs allowable as a matter of right, including filing and motion fees, necessary deposition costs, and qualifying court-reporter fees. Code Civ. Proc. § 1033.5(b) identifies items that are not allowable, while Code Civ. Proc. § 1033.5, subdivision (c)(4) permits the Court, in its discretion, to award an item neither expressly allowed nor prohibited. In all events, a cost must be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc. § 1033.5(c)(2)-(3); *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 738-739.)

A verified memorandum of costs ordinarily constitutes prima facie evidence that facially proper costs were necessarily incurred. (*Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co.* (1963) 217 Cal.App.2d 678, 698.) If an item is expressly allowable and appears proper on its face, the objecting party bears the burden of showing it was unnecessary or unreasonable. If the item is not expressly allowable, the party claiming it bears the burden of establishing that it was reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Code Civ. Proc. § 998 creates an additional rule. When a plaintiff rejects a defendant's Code Civ. Proc. § 998 offer and fails to obtain a more favorable judgment, the plaintiff cannot recover post-offer costs and must pay the defendant's post-offer costs; the Court may also award the defendant a reasonable sum for post-offer expert-witness services actually incurred and reasonably necessary in preparation for or during trial. (Code Civ. Proc. § 998(c)(1).)

B. Expert-Witness Fees

Price Ford seeks $9,853.40 for the services of Peter Lillo of Lillo Engineering pursuant to its verified memorandum of costs. Price Ford seeks these costs in connection with its August 30, 2024 Code Civ. Proc. § 998 offer. The memorandum of costs identifies the claimed expert work as extending over 29 months from October 31, 2023 through April 6, 2026, with work beginning approximately ten months before Price Ford made its own Code Civ. Proc. § 998 offer. Price Ford acknowledges that the expert fees were jointly incurred between itself and Ford Motor Company. The memorandum also indicates that Ford will seek the same expert fees, but "to be clear, Defendants do not seek duplicative recovery." (Price Ford Costs Mem., att. 8(b)(5), fn. 1 (May 19, 2026).) Neither the memorandum of costs nor Price Ford's opposition segregates pre-offer from post-offer expert witness services, nor explains what portion of the costs Price Ford is claiming.

Price Ford correctly argues that an expert need not actually testify at trial for section 998 expert fees to be recoverable. (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57-59; *Doe v. Dept. of Children & Family Services* (2019) 37 Cal.App.5th 675, 694-695.) It is also true that in a facially proper cost items are "prima facie evidence" that the costs are proper and necessarily incurred, which shifts the burden to the objecting party to show the costs were unnecessary or unreasonable. (*Id*. at p. 692.) Here, however, Price Ford does not present facially proper cost items with respect to its expert fees. Although the memorandum indicates that Price Ford will not seek "double recovery" for its shared costs, the memorandum appears to do just that, and there is no means for the Court to assess what the post-offer costs were in relation to the total costs claimed.

Accordingly, the request to tax $9,853.40 expert-witness fees is GRANTED in its entirety.

C. Deposition Costs

Costs for taking, video recording, and transcribing necessary depositions are expressly allowable. (Code Civ. Proc., § 1033.5(a)(3)(A).) The necessity of a deposition and its associated expenditures is committed to the trial court's discretion, and the party seeking to tax facially allowable deposition expenses bears the burden of showing they were unnecessary or unreasonable. (*County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113.) Plaintiff does not show that the costs claimed are not reasonable.

The Court therefore DENIES Plaintiff's request to tax the deposition costs.

D. Court-Reporter Fees

Plaintiff seeks to tax $584.25 attributed to a court reporter for the anticipated February 2, 2026 trial session. Court-reporter fees are expressly allowable "as established by statute." (Code Civ. Proc., § 1033.5(a)(11).)

Plaintiff principally argues that Price Ford ultimately prevailed on its April 6, 2026 pleadings motion without presenting evidence at trial. But necessity is evaluated in light of the circumstances when a cost was incurred, not solely with hindsight after the litigation has been resolved. The Court's January 29, 2026 order confirms that the case was then set for a five-day jury trial beginning February 2, 2026, when Price Ford remained an active defendant. Price Ford explains that it and Ford jointly arranged for a reporter in anticipation of that trial.

It is true that Price Ford did not attach a separate reporter invoice in opposition. But unlike the discretionary expert fees, court-reporter fees are an expressly allowable category and appeared on Price Ford's verified memorandum. The absence of a later-produced invoice, standing alone, does not overcome the memorandum's prima facie showing. Plaintiff has not demonstrated that arranging for the reporter while Price Ford remained scheduled to proceed to jury trial was unnecessary or that $584.25 was unreasonable.

The request to tax the $584.25 court-reporter charge is DENIED.

E. Electronic-Filing Fees

Plaintiff now asks the Court to tax $56.86 in charges imposed by electronic-filing vendors, contending that only court-imposed filing charges are recoverable.

That premise reads Code Civ. Proc., § 1033.5 too narrowly. Code Civ. Proc., § 1033.5(a)(14) expressly authorizes "[f]ees for the electronic filing or service of documents through an electronic filing service provider" where electronic filing or service is required or ordered. Thus, an amount is not rendered nonrecoverable merely because it is charged by the electronic-filing service provider rather than directly by the clerk.

The One Legal invoices distinguish statutory disbursements from the provider's own e-filing and administration charges. For example, the March 2026 Motion for Judgment on the Pleadings invoice separately lists $65.25 in court-related statutory disbursements and $18.95 in One Legal e-filing and administration fees. That distinction does not itself establish that the latter amount is prohibited; Code Civ. Proc. § 1033.5(a)(14) specifically contemplates provider fees.

There is some uncertainty concerning the 2023 Answer because it predates the July 2025 mandatory-electronic-service date identified in the tax-cost template, and the supplied record does not identify the particular electronic-filing requirement applicable at the time. In addition, Plaintiff's reply attributes $18.95 in challenged vendor charges to the Answer, while the underlying First Legal invoice reflects a different e-filing charge structure. On this record, Plaintiff has not established a reliable amount that should be taxed from that item.

Accordingly, the Court DENIES Plaintiff's request to tax $56.86 in electronic-filing charges.